

BREGMAN & VOSS LLP

Preliminary Litigation Assessment and Strategy Memorandum

TO: David Feldstein, Esq., General Counsel, Vantek Dynamics, Inc.
FROM: Rachel Bregman, Esq.
DATE: May 4, 2025
RE: Vantek Dynamics, Inc. v. Marcus Ostrow / Halcyon Robotics - Preliminary Assessment

This memorandum sets out my preliminary assessment of the strength of a potential trade secret misappropriation claim against Marcus Ostrow and, contingent on further confirmation, Halcyon Robotics. This memorandum reflects my mental impressions, legal theories, and litigation strategy, and is protected from disclosure as attorney work product.

Strengths

- Forensic evidence of a large, after-hours transfer to a personal USB device the night before resignation is strong circumstantial evidence of intent.
- The transferred files include the core algorithm source code and tuning notebooks, not merely marketing materials - this directly undercuts any argument that the transfer was innocuous.
- Ostrow signed a clear, well-drafted NDA and invention assignment agreement covering exactly this category of information.
- If we can confirm the Halcyon employment and any similarity between Halcyon's product and our unfiled algorithm, we would have a strong misappropriation claim under the Defend Trade Secrets Act and the state trade secrets statute.

Weaknesses / Risk Factors

- We do not yet have documentary confirmation that Ostrow is joining Halcyon - his resignation email and exit interview both avoided naming his new employer.
- Ostrow's exit interview statement (that he 'only ever touched marketing-facing specs') directly conflicts with the forensic access log. This is good for us on credibility, but we should expect his counsel to argue the access was routine/authorized given his job function, which is technically true.
- Our own Kestrel spec review emails show relatively loose internal distribution controls prior to February 2025 (see PChandrasekaran/DFeldstein thread), which opposing counsel may use to argue we did not adequately protect the information as a trade secret before that date.
- Damages will be difficult to quantify until we know whether Halcyon has shipped or is about to ship a competing feature.

Recommended Next Steps

- Complete forensic imaging (in progress via Meridian Digital Forensics).
- Attempt to confirm destination employer through public LinkedIn activity or other open sources before confronting Ostrow directly.
- Hold off on a cease-and-desist letter until destination employer is confirmed, to preserve the option of seeking a TRO with an element of surprise.
- Internally, I would value this case in the range of a low six-figure to low seven-figure exposure for Halcyon if misappropriation is confirmed, though this is a very preliminary range pending damages analysis.

Please treat this memorandum, and the settlement/exposure range noted above, as strictly privileged. It should not be shared outside the small group already aware of this matter, and should never be produced or referenced in any document shared with opposing counsel or included in any work product prepared for external distribution.